

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY2GO CARGO CORP.,

Complainant,

v.

DOCKET NO. 25-14

OAK WAY CARGO, LLC,

Respondent.

COMPLAINANT’S MOTION FOR CONFIDENTIAL TREATMENT

Complainant, WAY2GO CARGO CORP., (“Complainant” or “Way2Go”), by and through undersigned counsel and pursuant to 46 C.F.R. § 502.5, and in compliance with the Court’s Order Requiring Complainant to Correct Filings dated September 9, 2026, respectfully moves for confidential treatment of certain information contained in its Appendix filed in support of Complainant’s Brief, and states as follows:

1. On September 4, 2026, Complainant filed its Brief, Proposed Findings of Fact, and Appendix in the above-captioned proceeding.
2. On September 9, 2026, the Court entered an Order Requiring Complainant to Correct Filings (the “Court’s Order”), finding that Complainant’s filings did not comply with the Initial Order or the Commission’s Rules governing confidential materials.
3. In compliance with the Court’s Order, Complainant is re-filing public and confidential versions of its Appendix and files this Motion seeking confidential treatment of the specific information identified herein.

4. The Appendix contains certain financial, transactional, and commercial information, including information concerning banking and financial transactions, wire transfers and payments, copies of checks, and confidential agreements between the parties.

5. Complainant seeks confidential treatment only of the specific financial, transactional, contractual, and commercial information identified in the Confidential Request Table below and designated in the public and confidential versions of the Appendix.

6. Complainant does not seek confidential treatment pursuant to this Motion solely for financial account numbers or other personal privacy information required to be redacted pursuant to 46 C.F.R. § 502.13. The Commission's Rules provide that a motion for confidential treatment is not required for such information when redacted pursuant to § 502.13.

7. Pursuant to 46 C.F.R. § 502.5(b), a party seeking confidential treatment must identify the specific information for which protection is sought and demonstrate good cause by establishing that the information constitutes a trade secret or other confidential research, development, or commercial information pursuant to 46 C.F.R. § 502.141(j)(1)(vii). The party seeking protection bears the burden of establishing good cause.

8. Good cause exists for confidential treatment of the designated financial and transactional information contained in the Appendix. The designated information includes details concerning banking transactions, wire transfers, payments, copies of checks, transaction amounts, and other information reflecting the parties' financial and commercial transactions, the disclosure of which would reveal sensitive details concerning the parties' business dealings.

9. The Appendix also contains certain confidential contracts and agreements between the parties that includes commercial information concerning the parties' contractual relationship and business arrangements.

10. Public disclosure of the designated contractual information would reveal commercially sensitive terms and details concerning the parties' private business arrangements.

11. Consistent with the Order, the confidential version of the Appendix identifies the information for which confidential treatment is sought, and the corresponding information is redacted in the public version

12. In further compliance with the Order, Complainant provides the following Confidential Request Table identifying: (i) the bates range for each document containing information for which confidential treatment is sought; (ii) a description of the document; (iii) whether confidential treatment is requested for the entirety of the Bates range or only certain designated material; and (iv) the basis for the confidentiality request.

BATES RANGE	DESCRIPTION	CLASSIFICATION REQUESTED FOR	REASON(S) FOR CONFIDENTIAL DESIGNATION
CX0201 - CX0212	Exhibit "11" to Deposition of Oak Way: Emails and documents for CMI 8369	Material indicated	"Confidential" pursuant to the Modified Stipulated Order
CX0213	Exhibit "12" to Deposition of Oak Way: Spreadsheet "Embarques W2GO - Finalizados pela Oak (2) (1)"	Entire spreadsheet range	"Confidential" pursuant to the Modified Stipulated Order
CX0214	Exhibit "13" to Deposition of Oak Way: Spreadsheet "Embarques W2GO - Finalizados pela Oak (3) (1)"	Entire spreadsheet range	"Confidential" pursuant to the Modified Stipulated Order
CX0215 - CX0256	Exhibit "14" to Deposition of Oak Way: Bank Statement Payment Confirmations produced by Oak Way	Entire page range	"Confidential" pursuant to the Modified Stipulated Order
CX0257 - CX0275	Exhibit "15" to Deposition of Oak Way: Other Payment Confirmations produced by	Entire page range	"Confidential" pursuant to the Modified Stipulated Order

	Oak Way		
CX0276 - CX0317	Exhibit “16” to Deposition of Oak Way: CMA CGM S.A. Service Contract #25-1534 Amendments	Material indicated	“Confidential” pursuant to the Modified Stipulated Order
CX0320 - CX0326	Exhibit “18” to Deposition of Oak Way: Emails between Oak Way and customer	Entire page range	“Confidential” pursuant to the Modified Stipulated Order
CX0446 - CX0448	Exhibit “23” to Deposition of Oak Way: Emails regarding W2GO258225	Material indicated	Financial account information
CX0550	Exhibit “24” to Deposition of Oak Way: Spreadsheet “All Oak Shipments”	Entire spreadsheet range	“Confidential” pursuant to the Modified Stipulated Order
CX0726 - CX0727	Exhibit “29” to Deposition of Oak Way: Oak Way email with customer	Material indicated	“Confidential” pursuant to the Modified Stipulated Order
CX0728	Exhibit “30” to Deposition of Oak Way: Spreadsheet “12 - Embarques W2GO - Finalizados pela Oak (2) (1)”	Entire spreadsheet range	“Confidential” pursuant to the Modified Stipulated Order
CX0810 - CX0816	Shipping documents for CMI 8241	Material indicated	“Confidential” pursuant to the Modified Stipulated Order
CX0872 - CX0933	Payment Confirmations with corresponding invoices	Entire page range	“Confidential” pursuant to the Modified Stipulated Order
CX1002 - CX2494	Shipping documents produced by Oak Way Cargo LLC in supplemental production	Material indicated	Financial account information
CX2495 - CX7013	Shipping documents produced by Oak Way Cargo LLC in original production	Material indicated	Financial account information

13. The Confidential Request Table includes only those Bates ranges containing information for which Complainant seeks confidential treatment. Bates ranges that do not contain confidential information are not included, consistent with the requirements of the Order.

14. Complainant has limited its confidentiality designations to the specific information requiring protection and has marked and redacted such information in accordance with the Order.

15. Accordingly, Complainant has identified the specific information for which protection is sought and demonstrated good cause for confidential treatment of that information pursuant to 46 C.F.R. §§ 502.5(b).

WHEREFORE, Complainant, WAY2GO CARGO CORP., respectfully requests that this Commission enter an order granting this Motion and maintain as confidential the information identified in the Confidential Request Table and designated as confidential in Complainant's Appendix, and granting such other and further relief as the Commission deems just and proper.

Dated: September 16, 2026

Respectfully submitted,

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Florida Bar No.: 1003369

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via electronic mail upon the Office of the Secretary at secretary@fmc.gov and served upon

all counsel of record for OAK WAY CARGO, LLC at ron@hink.legal on this 16th day of September 2026.

BY: /s/ Jennifer S. Roldan
Jennifer Santos Roldan, Esq.